EduPulse SMT Founder IP And Confidentiality Checklist

Purpose

This checklist is for founder use. It helps make sure EduPulse SMT ownership, confidentiality, and legal evidence are protected before scaling the business, bringing in collaborators, or sharing the product more broadly.

Business Name

EduPulse SMT

Priority Outcomes

This checklist is meant to protect:

1. Ownership of source code and architecture
2. Ownership of workflows, documentation, and operating materials
3. Confidentiality of payment, security, and governance logic
4. Clean evidence trail for incorporation, contracts, and future legal disputes

Immediate Founder Checklist

A. Entity And Ownership Basics

- [ ] Confirm the legal entity name to be used for ownership of the platform
- [ ] Confirm whether EduPulse SMT will be registered personally first or through a formal company entity immediately
- [ ] Ensure the business name is used consistently across legal and business docs
- [ ] Record the founder as the originator of the platform, documentation, and operating methods

B. Source Code Ownership

- [ ] Ensure all code created personally is clearly attributable to you or the business entity
- [ ] Confirm there is no contributor code in the repo without written ownership or assignment terms
- [ ] Confirm no third party has implied ownership through unpaid collaboration, shared development, or ambiguous contribution history
- [ ] Preserve repository history and commit history as evidence of authorship

C. Contractor And Employee Protection

- [ ] Put invention-assignment language in every developer or contractor agreement
- [ ] Put confidentiality clauses in every contractor or collaborator agreement
- [ ] Cover documentation, workflows, templates, prompts, designs, and business methods, not only source code
- [ ] Prohibit reuse of EduPulse SMT internal logic outside authorized work

- [ ] Use and legal-review `CONTRIBUTOR_IP_ASSIGNMENT_TEMPLATE.md`
- [ ] Use and legal-review `CONFIDENTIALITY_NDA_TEMPLATE.md`

D. High-Value Confidential Know-How

- [ ] Treat payment categorization, reconciliation, and fee-type logic as confidential
- [ ] Treat reconciliation and recovery logic as confidential
- [ ] Treat tamper-evident ledger design as confidential
- [ ] Treat onboarding, launch, incident, and support playbooks as confidential business methods
- [ ] Limit unnecessary public disclosure of sensitive implementation detail

E. Brand And Product Identity

- [ ] Confirm the preferred legal and commercial form of the name EduPulse SMT
- [ ] Decide whether to pursue trademark or name protection
- [ ] Make sure public documents use the intended business name consistently
- [ ] Keep logo and brand documentation organized as authored business assets

F. School Contracts And Terms

- [ ] Ensure contracts say schools own their school data
- [ ] Ensure contracts say EduPulse SMT owns the platform, code, workflows, and materials
- [ ] Restrict reverse engineering, unauthorized copying, and derivative commercial use where appropriate
- [ ] Make sure pricing, support, privacy, and data-retention terms match the documented operating model

G. Privacy And Data Protection

- [ ] Confirm privacy, retention, and incident documents match the actual technical controls
- [ ] Confirm controller/processor positioning is clear enough for Ghana data-protection review
- [ ] Make sure high-risk data categories are reflected in legal docs
- [ ] Keep a named privacy contact and legal contact path current

H. Evidence Preservation

- [ ] Keep a dated copy of the main legal packet docs
- [ ] Preserve screenshots, architecture notes, and docs showing how the system works
- [ ] Preserve repository history, commit history, and authored documentation as evidence
- [ ] Keep records of when core features such as payment categorization, encryption, and ledgering were implemented

Strongest Assets To Protect First

If time is limited, prioritize legal protection around:

1. Multi-tenant school-control architecture
2. Payment categorization, legacy-route compatibility, and reconciliation logic
3. Tamper-evident financial ledger design
4. Security and encrypted-data handling design

5. Operations playbooks and school rollout materials

Supporting Docs

Use these docs with this checklist:

1. `LEGAL_COUNSEL_PACKET.md`
2. `LAWYER_EXECUTIVE_BRIEF.md`
3. `LAWYER_TECHNICAL_SYSTEM_SUMMARY.md`
4. `IP_ASSET_INVENTORY.md`
5. `GHANA_DATA_PROTECTION_TECHNICAL_BRIEF.md`
6. `CONTRIBUTOR_IP_ASSIGNMENT_TEMPLATE.md`
7. `CONFIDENTIALITY_NDA_TEMPLATE.md`

Practical Legal Ask List

When working with counsel, ask for:

1. IP assignment language for contributors and contractors
2. Confidentiality language that covers workflows and business methods, not only code
3. Terms language that reserves all platform IP to EduPulse SMT
4. Ghana data-protection wording that matches the platform's actual technical controls
5. Founder/entity ownership clarity for everything created before formal incorporation